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Case Number: 24STLC08071 Hearing Date: September 15, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Angelus Block, Inc.'s Motion for Entry of Judgment as to Defendants DLR Associates and Jose Barajas Pursuant to CCP § 579 is granted.

The proposed judgment filed on 08/07/2026 is signed and entered this date.

Analysis:

On November 5, 2024, Plaintiff Angelus Block, Inc. ("Plaintiff") filed the instant action for (1) breach of contract; (2) common count: goods and services rendered; (3) open book account; (4) breach of personal guaranty; (5) foreclosure of mechanic's lien; and (6) recovery on license bond against Defendants DLR Associates ("Defendant DLR"), Jose Barajas ("Defendant Barajas"), Postmaster Group, LLC ("Defendant PMG"), and The North River Insurance Company, which was subsequently dismissed.

Although defaults were entered against Defendants on March 28, 2025, and April 8, 2025, the parties later stipulated to vacate the defaults against Defendants DLR and Barajas. (Stip and Order, 07/23/25.) Defendants DLR and Barajas filed their Answer to the Complaint on August 1, 2025. No stipulation to vacate was filed as to Defendant PMG's default at the time.

On August 4, 2025, Defendant DLR filed a Cross-Complaint against Cross-Defendant PMG and Roes 1-10 for indemnification, apportionment of fault, and declaratory relief. Defendant PMG filed Answers to the Complaint and

Cross-Complaint on September 3, 2025. On the same day, Defendant PMG also filed a Cross-Complaint against Cross-Defendants DLR, Barajas, MID Construction Group, David Hirsch, and Steve Ghermezian.

On December 23, 2025, Plaintiff Angelus Block filed a Motion for Summary Judgment, or in the alternative, Summary Adjudication against Defendants. At the hearing on March 16, 2026, the Court granted Plaintiff summary adjudication as to the first, second, and third causes of action against Defendant DLR and as to the fourth cause of action against Defendant Barajas, and prejudgment interest against both. (Minute Order, 03/16/26, p. 8.) The Court also pointed out that Defendant PMG was in default as to the Complaint because its default had never been set aside. The Court struck Defendant PMG's Answer and Cross-Complaint and indicated that the Court would set a prove-up hearing on the default judgment against Defendant PMG, which was named solely in count five. (Id. at pp. 1-2.)

On March 25, 2026, the Court granted Plaintiff's ex parte application for leave to file an amended Complaint. (Minute Order, 03/25/26.) The Court noted that the proposed Amended Complaint removed Defendant DLR from the only cause of action left unresolved after summary judgment, and therefore left no claims unresolved against Defendant DLR. The Court ordered Plaintiff to file and serve the Amended Complaint within ten days upon Defendants PMG and Merchants Bonding Company, the bond surety. (Ibid.) Plaintiff filed the First Amended Complaint on March 27, 2026. Defendants DLR and Barajas filed their Answer to the First Amended Complaint on April 2, 2026. Defendant PMG filed its Answer to the First Amended Complaint on April 20, 2026; Defendant Merchants Bonding filed its Answer on May 8, 2026.

On June 24, 2026, the Court dismissed Cross-Defendant PMG from the Cross-Complaint pursuant to an oral request by Cross-Complainant DLR. Cross-Complainant DLR then added Merchants Bonding as a Cross-Defendant via docket amendment. (Amendment to Cross-Complaint, 07/27/26.)

Plaintiff filed the instant Motion for Entry of Judgment as to Defendants DLR Associates and Jose Barajas Pursuant to CCP § 579 on August 5, 2026. Defendants DLR and Barajas filed an opposition on August 28, 2026, and Angelus Block filed a Reply on September 8, 2026.

Discussion

Plaintiff moves for entry of judgment against Defendants DLR and Barajas on the Complaint, pursuant to Code of Civil Procedure section 579, on the grounds that all claims against these Defendants were determined against them in the Court's March 16, 2026 ruling on Plaintiff's Motion for Summary Judgment. Code of Civil Procedure section 579 states in relevant part: "In an action against several defendants, the Court may, in its discretion, render judgment against one or more of them, leaving the action to proceed against the others, whenever a several judgment is proper." (Code Civ. Proc., § 579.) A several judgment is proper where the liability of the moving defendant does not depend upon the determination of the liability of the parties who remain. (See *Trans-Pacific Trading Co. v. Patsy Frock & Romper Co.* (1922) 189 Cal. 509, 513.) Plaintiff contends that because all the claims against Defendants DLR and Barajas have been resolved, a several judgment is proper.

The Court agrees that a several judgment is appropriate. On March 16, 2026, the Court granted Plaintiff Angelus Block summary adjudication as to the first, second, and third causes of action against Defendant DLR, and the fourth cause of action against Defendant Barajas. That left pending the fifth cause of action against Defendant DLR and Defendant PMG, and the sixth cause of action against Defendant DLR and the North River Insurance Co. Plaintiff dismissed the sixth cause of action and, in filing the Amended Complaint, removed Defendant DLR from the fifth cause of action. The Amended Complaint did not amend the causes of action as to which summary adjudication had been entered. (See Minute Order, 03/25/26.) Accordingly, Plaintiff Angelus Block's causes of action against Defendants DLR and Barajas are resolved in their entirety. Following entry of a judgment as to those two Defendants, the Complaint would remain pending as to Defendants Merchants Bonding Company and Defendant PMG, who are named only in the fifth cause of action, for Claim on Mechanics Lien Release Bond. (Am. Compl., ¶¶34-45.) DLR's Cross-Complaint is against Merchants, and does not name Angelus Block or Barajas. (Although the Opposition states otherwise, the Cross-Complaint is not filed on behalf of Defendant Barajas.)

The Opposition cites no authority for its positions. Defendants DLR and Barajas argue that a several judgment against them is not proper, because "[a]ll parties are responsible for the same debt for materials from Angelus Block. DLR ordered the materials. Jose Barajas guaranteed the account. [PMG] is responsible on the mechanic's lien since it received the materials and failed to fund the project,

leaving DLR unable to pay its vendors including Angelus Block. Now Merchants is alleged to be responsible for the same debt under the mechanics lien release bond.” (Opp., p. 5:1-10.) These facts do not describe a scenario that warrants separate judgments. Plaintiff’s claims against Defendants DLR and Barajas have been fully adjudicated, with nothing left to decide. Judgment may be entered as to those claims, and Defendants DLR and Barajas may seek recovery from other defendants whom they believe should be held accountable.

The opposition also asserts broadly that, “Plaintiff wants a separate judgment against DLR and Barajas then to get a judgment against Postmaster and Merchants for the same debt. That result is not in the interest of justice. There should be only one judgment in this case.” (Opp., p. 3:15-19.) That argument falls in the category of issues that can be litigated among the remaining parties. Defendants PMG and Merchants can raise the issue of double-recovery, if they believe it applies. It does not make entry of judgment on the adjudicated claims less appropriate.

The Opposition is incorrect on several points of procedure that the Court will take a moment to clarify. As noted, the Cross-Complaint is not filed on Defendant Barajas’ behalf. (See Opp., 3:12-13.) Also, Defendant Merchants is not delinquent in responding to the Cross-Complaint, because no proof of service has yet been filed. (See Opp., p. 3:20-22.) Third, the Opposition incorrectly states that DLR and Barajas have affirmative defenses available. (See Opp., p. 3:22-26.) They do not because all claims against them have been adjudicated. Relatedly, the Opposition states that the Amended Complaint negated the prior summary adjudication ruling, leaving all the adjudicated claims again at issue. (Opp., p.4:9-17.) The Opposition cites no authority for this contention. Although “the filing of an amended complaint moots a motion directed to a prior complaint,” (see *State Comp. Ins. Fund v. Superior Ct.* (2010) 184 Cal. App. 4th 1124, 1131 (emphasis added)), the Opposition cites no authority for the proposition that it moots an already adjudicated motion where the amendment did not change the adjudicated causes of action.

Conclusion

Plaintiff Angelus Block, Inc.’s Motion for Entry of Judgment as to Defendants DLR Associates and Jose Barajas Pursuant to CCP § 579 is granted.

The proposed judgment filed on 08/07/2026 is signed and entered this date.

Moving party to give notice.